STANDARD OPERATING PROCEDURE			G-1220
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **11/16/11**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES FOP CONTRACT			
SUBJECT CHAIN OF COMMAND	CROSS REFERENCE			

I. Purpose:

The purpose of this policy is to establish the chain of command for the Sarpy County Sheriff's Office.

II. Policy:

A defined system outlining the chain of command has been established to provide employees with direction in matters necessitating command personnel. The chain of command is a system whereby authority passes down from the top through a series of ranks in which each is accountable to the one directly superior. The command protocol outlined in this policy shall clarify authority and supervisory duties in the execution of Sheriff's Office operations.

III. Procedures:

A. Chain of Command: Chain of command shall be the unbroken line of authority extending from the Sheriff through a single subordinate at each level of command down to the level of execution and then returned up the line.

1. To ensure effective administrative and supervisory control, the chain of command, or up and down lines of authority, shall be followed by each employee regardless of rank (This shall not apply when policy specifically authorizes exceptions and is not intended to stifle suggestions or feedback).

2. In all matters relating to policy and procedure, no employee shall circumvent his or her immediate supervisor, except where such supervisor has authorized the discussion of a specific problem with the next higher ranking individual in the chain of command. It shall then be the duty of the employee to inform the immediate supervisor of any decision or instruction which may have been received in relation to the subject discussed.

3. Each division and support unit shall have a clearly defined structure to provide a chain of command.

B. Rank Order:

1. The order of precedence of commissioned ranks is:

a) Sheriff
b) Chief Deputy
c) Captain
d) Lieutenant
e) Sergeant
f) Deputy

2. The Sheriff is responsible for the overall management of the Sheriff's Office. The Sheriff, or any other command officer, may designate a subordinate to fulfill his or her duties during an absence. If a specific designation has not been made, the duties shall rest with the senior member in the preceding rank (e.g. if a division captain is absent, the division lieutenant shall perform his or her duties). Acting supervisors and command officers shall have the full authority and responsibility of the position they are assigned until relieved by their supervisor or another superior ranking employee.

3. Seniority within the same sworn rank shall be determined by continuous length of service in that rank.

a) Where two (2) or more sworn employees in the same classification are appointed or promoted on the same date, seniority shall be determined by the order of ranking on the Sheriff's Office Merit Commission certified list from which their appointments or promotions were made. If two (2) or more sworn employees appointed on the same date were tied on the eligibility list, seniority shall be awarded to the employee who would have been hired by the Sheriff if only one position were available. If two (2) or more sworn employees promoted on the same date were tied on the promotional eligibility list, seniority shall be awarded to the employee with the earliest starting date as a sworn employee.

4. In a situation where a supervisor is not present, the deputy with the greatest seniority shall be considered the ranking officer (unless otherwise designated by policy).

C. Supervision:

1. Within every rank of the Sheriff's Office, supervisors and command officers have the authority necessary to carry out their duties and responsibilities

and are accountable for the use of such authority. In addition, each employee shall be accountable for the use of delegated authority.

2. Supervisors and command officers are responsible for the overall performance of all employees under their immediate control.

3. Any supervisor or command officer has the authority to delegate responsibility, make necessary assignments, issue orders, and enforce Sheriff's Office policies regardless of the subordinate's assignment.

4. Each employee shall be accountable to only one supervisor or command officer at any given time.

D. **Orders:** Subordinate employees shall comply immediately with any lawful command or order, verbal, or written, issued by a ranking deputy, supervisor, or command officer. Failure to comply shall be a violation of this policy.

1. **Conflicting Orders:** Employees, who are given an otherwise proper order that is in conflict with a previous procedure, policy or order, shall respectfully inform the supervisor or command officer issuing the order of the conflict. If the supervisor or command officer issuing the new order does not alter or retract the conflicting order, the employee shall obey the conflicting order and shall not be held responsible for disobeying the original order. The responsibility for the conflict shall be upon the supervisor or command officer issuing the new order. For matters of clarification an employee may:

a) Request written clarification from his or her chain of command prior to following a conflicting order, should time and situation allow.

b) If the policy in question is unclear or no policy exists related to the order the employee may submit a SOP Modification/Creation Request form for review.

2. **Unlawful Orders:** Employees shall not obey any order from a supervisor or command officer they know would require them to commit an illegal act. If in doubt as to the legality or propriety of an order, employees shall express their concern to the supervisor or command officer issuing the order and request clarification of the order. If an employee still believes the order is unlawful, he or she shall request a higher authority review the order.

3. **Indirect Orders:** Employees are required to obey any lawful order issued by a superior, including any order relayed from a superior by an employee of the same or lesser rank. This applies to the subordinate even if he or she is not normally under the superior's direct command.

E. **Insubordination:** Employees shall obey all lawful procedures, policies, and orders as required by a supervisor or command officer. No employee shall resist, disparage, ridicule, or defy a supervisor or command officer's authority or orders. Furthermore, no employee shall utter any disrespectful, mutinous, insolent or abusive language about a supervisor, command officer, or the Sheriff's Office.

1. Supervisors and command officers shall avoid censuring employees in the presence of others. Supervisors and command officers are also forbidden to injure or discredit those under their authority by tyrannical or capricious conduct, or by the use of abusive language.

2. Any complaint an employee may have regarding a supervisor or command officer shall be submitted, in writing, to an administrative commander who shall forward it to the Sheriff for final disposition, as shall all concerns regarding personal disagreements between superiors and subordinates.